

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

**SAMSUNG ELECTRONICS
AMERICA, INC.,**

v.

COSCO SHIPPING LINES CO., LTD,

v.

**SAMSUNG ELECTRONICS CO., LTD., SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE LTD, AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED**

RESPONDENT’S STATUS REPORT

COSCO Shipping Lines Co., Ltd. (“Respondent” or “COSCO”) respectfully provides the Presiding Officer this Status Report concerning discovery in this proceeding. COSCO requested that Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) submit a Joint Status Report with COSCO, but SEA declined COSCO’s request.

BACKGROUND

By Order dated September 12, 2025, the Parties were to complete document production by October 17, 2025; complete depositions by December 12, and complete discovery by January 9, 2026, and a Prehearing Conference was tentatively scheduled for February 9. On November 25, 2025, the Parties filed a Joint Motion seeking extension of the discovery schedule. In that motion, the Parties requested modification of the discovery schedule, to extend deadlines for production of

documents and to complete depositions, and new dates for expert discovery, which did not exist in the prior schedule. That joint motion was never approved by the Presiding Officer and has now been superseded by the events discussed below.

Motions to dismiss COSCO's counterclaim and third-party claims, and motions to quash subpoenas for documents to Samsung SDS America, Inc. and Samsung SDS Asia Pacific Pte. Ltd, remain pending. The Respondent notes the following progress and status, limited necessarily to discovery between Complainant Samsung Electronics America, Inc. ("Complainant" or "SEA") and COSCO.

I. Production of Documents and Responses to Discovery Requests

A. Complainant

SEA has made no additional production of documents since August 29, 2025¹. On January 16, SEA served its First Supplemental Responses and Objections to COSCO's First Set of Interrogatories and Requests for Production of Documents.

B. Respondent

COSCO collected a massive amount of data—more than 1.6 terabytes of data in the United States, South Korea, and China—to respond to discovery requests in this matter. That data included millions of documents for processing and review prior to production. To date, COSCO has produced nearly 300,000 documents, comprising approximately 1,000,000 pages.

¹ Although counsel for SEA provided the link to its last production on August 28, it did not email COSCO the password for the production until the evening of August 29, 2025.

1. U.S. Documents

Since November 25, 2025, COSCO has continued to review and produce U.S. documents on a rolling basis. Thus far, COSCO has made the following additional productions of U.S. documents:

- November 30, 2025: COSCO0652441-COSCO0655519;
- December 5, 2025: COSCO0655520-COSCO0661833;
- January 9, 2026: COSCO0661834-COSCO0662161;
- January 16, 2026: COSCO0955902-COSCO0973744; and
- January 21, 2026: COSCO0973745-COSCO0978012.

Although COSCO intends to make a supplemental production of additional documents from the U.S.-based collections on a request for supplementation by SEA (see n.2, *infra*), COSCO has otherwise substantially completed production of documents from U.S. custodians.

2. Korea Documents

COSCO collected data from Korean custodians, and to date has made the following productions of those documents:

- January 13, 2026: COSCO0662162-COSCO0955901; and
- February 6, 2026: COSCO0978013-COSCO0999672.

COSCO intends to complete production of all Korean documents by February 11, 2026.

3. China Documents

Documents in data collected from China are now being reviewed on a document-by-document basis, which requires significant time. U.S. counsel for COSCO have been advised by Chinese counsel that Chinese law requires a review be undertaken prior to the exportation of any data to ensure the exportation of that data does not contravene the requirements of several Chinese laws. Nevertheless, a first tranche of responsive documents, about 1.3 gigabytes, has now been exported from China to the U.S. for final review by U.S. counsel. A second tranche of documents for production is under review by Chinese counsel.

With the exception of documents from Chinese custodians, COSCO views its production of documents as substantially complete. COSCO will make rolling production of documents from Chinese custodians as those documents are available. COSCO informed SEA that it may take 90 days to complete production of documents from China.

4. Third Parties

COSCO has made multiple efforts to obtain discovery it requires for its defense against SEA's claims via subpoenas to non-parties Samsung SDS America, Inc., Samsung SDS Co., Ltd. and each of the Third-Party Respondents. Samsung SDS America, Inc. and Third-Party Respondent SDS Asia Pacific Pte., Ltd. have each moved to quash the subpoenas, and those motions have been fully briefed and remain pending. As a result, COSCO has been unable to obtain discovery relevant to SEA's claims against COSCO or COSCO's counterclaim against SEA and its third-party claims. The Korean authority has refused to serve subpoenas issued by the Presiding Officer presented under the Hague process on Samsung Electronics Co., Ltd., Samsung SDS Co., Ltd. and Samsung Electronics Logitech Co., Ltd. COSCO considers such discovery to be essential before fact discovery can close in this matter.

II. Depositions and Expert Discovery

A. SEA Deposition of COSCO Witness

On Sunday, January 18, 2026, SEA served a notice for the deposition of COSCO North America employee Cyd McCall to be held February 3, 2026. Upon receipt, COSCO consulted with the witness and notified SEA on January 27 that the witness was not available on the requested day but could be on February 26. SEA did not respond until the meet and confer held on February 5, when SEA's counsel stated that February 26 is not acceptable to SEA. Counsel for COSCO again contacted the witness to identify any earlier dates of availability. On February 7, COSCO's

again contacted the witness to identify any earlier dates of availability. On February 7, COSCO's counsel notified SEA's counsel that the witness is available on February 12. SEA has not responded to the offer of this earlier date.

No other depositions have been noticed at this time. COSCO expects to notice multiple depositions and expects to begin that process soon. To date, COSCO has been focused on completing its own productions of documents and on attempting to obtain complete responses to written discovery requests before scheduling those depositions to avoid prejudice, but that may not be possible. *See* Section III, *infra*.

B. Expert Discovery

Expert discovery has not begun. For the reasons explained in the Parties' Joint Motion, dated November 25, 2025, COSCO still views deadlines for expert discovery—including deadlines for expert affirmative and rebuttal reports and depositions—to be necessary to ensure orderly and fair expert discovery in this matter.

III. Deficiencies in SEA's Discovery Responses

Counsel for COSCO has informed SEA of crucial deficiencies in SEA's responses to COSCO's First Set of Interrogatories and Requests for Production of Documents. Counsel for COSCO and SEA have met and conferred in videoconferences with respect to SEA's deficiencies (the most recent of which was February 2) and had multiple written communications, and to some extent narrowed their areas of disagreement, but key disagreements remain. As a prime, but not the only, example, COSCO propounded interrogatories to SEA which go to the heart of SEA's claims—the bases for its allegations that COSCO is responsible for or caused the delays and related charges of which it complains, and of COSCO's alleged wrongdoings. SEA has refused to provide written answers to those interrogatories, or to identify with sufficient specificity the documents in

its production upon which it purportedly relies in lieu of written responses *See* 46 C.F.R. § 502.145(d). COSCO cannot defend itself without sufficient information about the claims against it, nor can it be reasonably argued that COSCO should scour over two million pages of documents in the hope that it might obtain some of the information it properly seeks.² COSCO expects that it will need to seek relief from the Presiding Officer for SEA's deficient discovery responses.

IV. Attempts to Meet and Confer Concerning the Schedule and Reporting to the Court

Since November 25, 2025, the Parties have met several times to discuss discovery matters. The Parties met on January 21 and again discussed ongoing discovery and the schedule in this matter.

Noting the deadlines required by the procedural schedule issued on September 12, 2025 have not been met, COSCO suggested to SEA that the Parties confer on an updated schedule and, if agreement can be reached, to jointly move to propose a new schedule. But during a meet and confer on February 5, counsel for SEA stated that SEA would not join any filing, whether a status report or a motion, related to the schedule in this matter. Instead, counsel for SEA demanded that COSCO file its own status report by the close of business on February 6.³ Counsel for COSCO were surprised by this sudden change by SEA because the parties had previously agreed that the Presiding Officer admonished the Parties to make joint filings on discovery and scheduling issues where possible, rather than engaging in a series of competing statements or filings. *See, e.g.*, Exhibit A (Whittaker February 6, 2026); Exhibit B (DiBlasi February 6, 2026).

² Indeed, although SEA produced a document, which SEA's counsel states contains the charges which SEA contends are unlawful, in a recent videoconference SEA's counsel was unable to explain the meaning of the data in the document. SEA has not yet provided clarification that COSCO requested.

³ During the meet and confer on February 5, SEA also advised COSCO that it considered COSCO's production deficient, and COSCO is reviewing specific requests from SEA.

COSCO still believes that joint status reports or a joint proposal to revise the schedule are appropriate to limit demands on the Presiding Officer's time. Accordingly, on February 6, COSCO requested that SEA reconsider its position, but SEA refused. As a result, COSCO respectfully submits this status report.

Dated: February 9, 2026

Respectfully Submitted,

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Counsel to COSCO Shipping Lines Co., Ltd.

CERTIFICATE OF SERVICE

I hereby certify that on this 9th day of February, 2026 I have served the foregoing document as well as the accompanying exhibits by electronic mail upon the following persons:

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By: /s/ Martha Medina

EXHIBIT A

COSCO to SEA
February 6, 2026

RE: SEA v. COSCO; Meet and Confer February 5, 2026

Whittaker, Brian <bwhittaker@nixonpeabody.com>

Fri, Feb 6, 2026 at 10:57 AM

To: "Kristine.Little@hklaw.com" <Kristine.Little@hklaw.com>, Rebecca Fenneman <rfenneman@jeffreyfenneman.com>, "Gerald.Morrissey@hklaw.com" <Gerald.Morrissey@hklaw.com>, "Andrew.Choi@hklaw.com" <Andrew.Choi@hklaw.com>, "Matthew.DiBlasi@hklaw.com" <Matthew.DiBlasi@hklaw.com>, "Katia.Leiva@hklaw.com" <Katia.Leiva@hklaw.com>, "chris.nolan@hklaw.com" <chris.nolan@hklaw.com>, "Allison.Skopec@hklaw.com" <Allison.Skopec@hklaw.com>
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Counsel,

In our meet and confer on January 21, 2026, we discussed, among other issues, the schedule for ongoing discovery. You requested that COSCO provide a proposal for a revised discovery schedule. On January 27, we provided an update—that COSCO's best guess, based upon then-present information, is that it may take 90 days to complete production of documents from China. We also explained that we were open to hearing your thoughts about whether to request an extension of discovery because the parties will likely fare best by talking and reaching an agreement on a path forward. We further proposed providing an update to the Presiding Officer with a joint status report as soon as practicable, with subsequent updates as appropriate.

In response, on January 28, you stated that our proposal to provide joint status reports is not a "concrete or viable plan," but you did not provide an alternative proposal.

Based on our most recent meet and confer, yesterday afternoon on February 5, we understand SEA's position now is that it will not join any filing, including a joint status report or a joint motion to modify the schedule. Instead, SEA's position is that COSCO should file its own status report by February 6, 2026. We were surprised by this sudden change, but we said we would consider your proposal and respond by February 6, which we are now doing.

We respectfully request that SEA reconsider its position. As Mr. Nolan stated in his January 22 email, the parties are working under "elevated meet and confer requirements that the Presiding Officer has placed on the lawyers ... to essentially talk more and file less." In other words, we understand that the approach requested by the Presiding Officer, and one that is likely to result in the best outcome for the parties, is to make joint filings on discovery and scheduling issues where possible, rather than starting again with what could be a series of competing statements or filings.

If SEA refuses to cooperate on a joint filing, we expect that COSCO will file its own status report, but COSCO will not make such a filing until next week. We must update and confer with our client about SEA's new position and the scope of a status report before completing such a filing.

Please let us know if SEA will reconsider its position as soon as practicable.

Best,

Brian



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EXHIBIT B

SEA to COSCO
February 6, 2026

RE: SEA v. COSCO; Meet and Confer February 5, 2026

Matthew.DiBlasi@hklaw.com <Matthew.DiBlasi@hklaw.com>

Fri, Feb 6, 2026 at 7:53 PM

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Counsel,

Thank you for sitting down to speak with us yesterday for the meet and confer session that SEA requested regarding the status of COSCO's discovery responses. I write to confirm our conversation and also to respond to and correct certain statements in Brian Whittaker's email of earlier today.

Method of Advising ALJ of Discovery Issues –

In our meet and confer on January 21, 2026, we discussed, among other issues, the status of COSCO's discovery and the implications of COSCO not completing its discovery and document production by the date committed for doing so in the joint request for extension filed with the ALJ, nor by the date of the meet and confer. We explained that we had been cooperating with COSCO, including accepting COSCO's representations on the stated date that COSCO would complete its production. We further explained that we were running out of options for cooperation and were increasingly concerned that COSCO's discovery delays and absence of notice to the ALJ that COSCO has not completed its production, risked prejudicing SEA. Contrary to COSCO's email earlier today, at the Jan 21 meet and confer, we did not "request that COSCO provide a proposal for a revised discovery schedule," we requested that COSCO get back to us with a proposal on COSCO informing the ALJ of the status of COSCO's discovery—a status which is currently at odds with COSCO's representations in the record on completion of discovery.

SEA considered that COSCO's January 27 "Proposal for Revised Discovery Schedule"-- wherein COSCO stated that "we are not at this time in a position to propose a date for the final completion of the production of Chinese communications" and that suggested that the parties discuss "requesting an extension of discovery" or provide joint status updates to the ALJ -- was indeed not a "concrete or viable plan."

On the meet and confer call yesterday we requested that COSCO prepare a submission advising the ALJ of the current status of COSCO's production of the China and Korea-based documents, the reasons for COSCO's ongoing delays, as well as an admission that the production delays are squarely a result of the foregoing. This was not a change in SEA's position. We did however request that COSCO file said submission by COB today so that the ALJ is on notice of the current state of discovery. We are in receipt of Brian's email from earlier today in response, reiterating COSCO's request that SEA participate in a joint submission, and declining to file anything with the ALJ today. For the reasons we discussed on the call yesterday, SEA respectfully declines to participate in a further joint submission seeking an extension of the schedule. While we take note of COSCO's continued assurances as to the ultimate production of documents at a date unknown, as mentioned, it is SEA's position the delay has gone on long enough without informing the ALJ and that the delay and situation is increasingly prejudicial to SEA. COSCO has not met its prior representations that discovery would be completed, and COSCO is still not able to provide a date when its production and discovery responses will be completed. Under these circumstances, SEA cannot continue to rely on open-ended representations, including relying on COSCO filing its own status report sometime next week. As a result, please be advised that we intend to file a motion to compel on these issues forthwith.

COSCO'S Responses to SEA's Discovery Requests –

With respect to COSCO's responses to SEA's interrogatories and requests for production, we noted SEA was having difficulty deciphering which responses have been fully responded to and which responses were subject to future supplementation. Please see Kristine's email of January 28th for a more fulsome discussion of this issue. You stated on the call that COSCO would either be producing additional documents or supplementing interrogatory responses where applicable on an ongoing basis as you receive documents from Korea and China. You also stated that a supplement would be provided in the near term with documents and information obtained by COSCO since November. However, COSCO was unable to confirm which specific interrogatories and requests for production it considers complete and which remain subject to supplementation.

You also represented that COSCO will produce Korea-based documents on February 11. In addition, you indicated that you have not reviewed the China-based documents, and thus cannot provide a timeline for their production or identify which responses those materials

will supplement.

Missing Documents –

We raised the fact that our searching of COSCO's US-based production to date uncovered the existence of various responsive policy/procedure and reporting documents that were not included in COSCO's previous productions. These documents are responsive to SEA Discovery Requests, including Interrogatory Nos. 4–6, 8, and 10–14, as well as Requests for Production Nos. 10 and 15.

In COSCO's January 16, 2026 production, an email from November 2022 (COSCO0960922) and its attachment (COSCO0960923) identify procedure documents that are directly relevant to SEA's claims. The email states that COSCO uploaded "139 documents, either original or updated" to a SharePoint site that COSCO described as COSCO's procedures. The attached spreadsheet, titled "Procedures Index Sheet" lists 143 documents, which appear to list COSCO procedures governing, among other things, the transportation of cargo, the assessment of charges, the use of equipment, and internal operations.

We have reviewed COSCO's productions to date and have not located these procedure documents, nor the various versions referenced in the email and attachment. Accordingly, COSCO's U.S. production appears incomplete, and COSCO is obligated to supplement its production to include these responsive procedure documents and all versions referenced therein. Please confirm that COSCO will do so.

Best,

Matt

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